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USDC IN/ND case 2:22-cv-00278-TLS-JPK document 4 filed 09/22/22 page 1 of 5

Clerk

Lake County, Indiana

STATE OF INDIANA) IN THE LAKE _____ COURT
)
) SS:
COUNTY OF LAKE) SITTING AT _____, INDIANA

LINDA ASHER,)
ROBERT ASHER, and)
MARTHA DEAL,)
)
Plaintiffs,)
)
v.) CAUSE NO.
)
SPARTAN FREIGHT SYSTEMS,)
INC.; and MOHIT PALTA,)
individually and as an employee,)
agent, and/or servant of)
SPARTAN FREIGHT SYSTEMS,)
INC.,)
)
Defendants.)

COMPLAINT

Plaintiffs, LINDA ASHER ("Linda"), ROBERT ASHER ("Robert") and MARTHA DEAL ("Martha"), by counsel, ALLEN LAW GROUP, for their Complaint against SPARTAN FREIGHT SYSTEMS, INC. ("Spartan") and MOHIT PALTA, individually and as an employee, agent, and/or servant of SPARTAN FREIGHT SYSTEMS, INC. ("Palta"), allege and state as follows:

1. At all times relevant herein, Spartan was and is an interstate motor carrier operating in the state of Indiana, including in Lake County.
2. At all times relevant herein, Palta was and is a professional truck driver operating a tractor-trailer in Lake County, Indiana for Spartan's pecuniary benefit.

EXHIBIT A

3. On June 14, 2021, Palta was operating the tractor-trailer under Spartan's interstate motor carrier operating authority and displaying its logo and U.S. DOT number.

4. On June 14, 2021, Palta was driving the tractor-trailer westbound on I-80 near the 8.7 mile marker in Lake County, Indiana.

5. On June 14, 2021, Linda was driving a 2014 Hyundai Sonata westbound on I-80 near the 8.7 mile marker in Lake County, Indiana with her mother, Martha, as her passenger.

6. At all times relevant herein, there was in full force and effect in the State of Indiana, Ind. Code § 8-2.1-24-18, a statute incorporating by reference, *inter alia*, Parts 390, 391, 392, 393, 395, and 396 of the Federal Motor Carrier Safety Regulations ("FMCSRs").

7. On and before June 14, 2021, Spartan and Palta were subject to the FMCSRs.

8. On and before June 14, 2021, Spartan had a duty to act reasonably in hiring, entrusting, instructing, supervising, and retaining Palta, to transport cargo in interstate commerce, and to adopt and enforce policies, procedures, and rules to ensure that drivers and vehicles operating under its authority were reasonably safe.

9. On and before June 14, 2021, Palta had a duty to follow state traffic laws and to operate the tractor-trailer in a reasonable and safe manner as a professional truck driver should under the circumstances.

10. On and before June 14, 2021, Spartan and Palta breached the foregoing duties and were negligent, grossly negligent, reckless, and/or willful and wanton.

11. On June 14, 2021, as a direct and proximate result of the negligence, gross negligence, recklessness, and/or willfulness and wantonness of each of the Defendants, Defendants crashed the tractor-trailer into the side of Linda's car.

12. At all times relevant herein, Spartan exerted authority over Palta's operation of the tractor-trailer, the means and methods employed by Palta in his work, and provided him with the equipment, including, but not limited to, the tractor-trailer and motor carrier authority necessary to accomplish his assigned tasks. As Palta's employer and/or principal, Spartan is vicariously liable for his negligence and conduct.

13. As a direct and proximate result of the foregoing collision, Linda sustained permanent and severe personal injuries, incurred and will incur, hospital, diagnostic, therapeutic, surgical, pharmaceutical, and other medical expenses; suffered and will suffer physical pain, mental suffering, terror, fright, humiliation, loss of enjoyment of life; disability; disfigurement; loss of income and wages; loss of time; impairment of earnings capacity; and sustained other injuries and damages of a personal and pecuniary nature.

14. As a direct and proximate result of the foregoing collision, Martha sustained permanent and severe personal injuries, incurred and will incur, ambulance, hospital, diagnostic, therapeutic, surgical, pharmaceutical, and other medical expenses; suffered and will suffer physical pain, mental suffering, terror, fright, humiliation, loss of

enjoyment of life; disability; disfigurement; loss of income and wages; loss of time; impairment of earnings capacity; and sustained other injuries and damages of a personal and pecuniary nature.

15. At all times relevant herein, Robert and Linda were and are married.

16. As a result of the negligent, grossly negligent, reckless, and/or willful and wanton conduct of Spartan and Palta, and Linda's injuries resulting therefrom, Robert has suffered a loss of society, companionship, services and consortium which Linda had more ably provided prior to her aforesaid injuries.

17. Linda and Martha were present and witnessed the events and injuries to each other during the crash and as a result have suffered and will continue to suffer severe and substantial mental suffering.

WHEREFORE, Plaintiffs, LINDA ASHER, ROBERT ASHER, and MARTHA DEAL, seek the entry of judgment in their favor and against Defendants, SPARTAN FREIGHT SYSTEMS, INC. and MOHIT PALTA, for compensatory and punitive damages in an amount to be determined herein, prejudgment interest, for the costs of this action, and for any and all other relief that the Court and Jury deem proper under the circumstances.

Respectfully submitted,

ALLEN LAW GROUP, LLC
Attorneys for Plaintiffs

/s/ Hunter J. McKee

Kenneth J. Allen (3857-45)
Hunter J. McKee (34695-64)

JURY DEMAND

Plaintiffs demand trial by jury on their Complaint.

Respectfully submitted,

ALLEN LAW GROUP, LLC
Attorneys for Plaintiffs

/s/ Hunter J. McKee

Kenneth J. Allen (3857-45)
Hunter J. McKee (34695-64)



Reply to Office Indicated _____

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